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CMS COMPUTERS INDIA PRIVATE LTD

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CMS TRAFFIC LIMITED

WHISTLEBLOWER POLICY

PREFACE:

- A) The Company believes in the conduct of the affairs of its constituents (Directors, Management, Employees, Consultants, Ecosystem Partners, Vendors, Suppliers, Clients, Government agencies) in a fair and transparent manner by adopting highest standards of professionalism, honesty, integrity and ethical behavior. The Company has adopted the Code of Conduct (“the Code”), which lays down the principles and standards that should govern the actions of the Company and its employees. Any actual or potential violation of the Code, howsoever insignificant or perceived as such, would be a matter of serious concern for the Company. The role of the management and employees in reporting such violations of the Code cannot be undermined.
- B) Section 177 (9) of the Companies Act, 2013 read with Rule 7 of the Companies (Meetings of Board and its Powers) Rules, 2014, as amended, mandates the following classes of companies to constitute a vigil mechanism for their directors or employees to report their genuine concerns or grievances –
- Every listed company.
 - Companies which accept deposits from the public.
 - Companies which has borrowed money from banks and public financial institutions in excess of INR 50 Crores.
- C) The Securities and Exchange Board of India (Prohibition of Insider Trading) Regulations, 2015, as amended from time to time prescribes that all listed companies should have a whistleblower policy to enable employees to report instances of leak of unpublished price sensitive information.
- D) Accordingly, this Whistleblower Policy (“the Policy”) has been formulated with a view to provide a mechanism for all Employees, Clients and Vendors (including entire Ecosystem) of the Company to approach the Chief Executive Officer and / or the Audit Committee of the organization.

DEFINITIONS

The definitions of some of the key terms used in this Policy are given below.

1. “Whistle Blower Audit Committee” means the Audit Committee (WBAC) constituted by the Board and management of the company
2. “Employee” means every employee of the Company (whether working in India or abroad), including the directors of the Company.
3. “Code” means the CMS Business Conduct Guidelines.
4. “Investigators” mean those persons authorized, appointed, consulted or approached by the Audit Committee/Chief Executive Officer/Board of Directors and includes the WBAC of the Company, external agencies and/or the police.

5. “Protected Disclosure” means any communication made in good faith that discloses or demonstrates information that may evidence unethical or improper activity, including leak of unpublished price sensitive information.
6. “Subject” means a person against or in relation to whom a Protected Disclosure has been made or evidence gathered during the course of an investigation.
7. “Whistleblower” means an Employee or director or Client or a Vendor making a Protected Disclosure under this Policy.

SCOPE

- a) This Policy is an extension of the CMS Computers India Pvt Ltd and CMS Traffic Ltd Code of Business Conduct. The whistleblower’s role is that of a reporting party with reliable information. They are not required or expected to act as investigators or finders of facts, nor would they determine the appropriate corrective or remedial action that may be warranted in a given case.
- b) Whistleblowers should not act on their own in conducting any investigative activities, nor do they have a right to participate in any investigative activities other than as requested by the Audit Committee or the Investigators.
- c) Protected Disclosure will be appropriately dealt with by the CEO or the WBAC, as the case may be.

ELIGIBILITY

All employees and directors of the Company are eligible to make Protected Disclosures under the Policy. The Protected Disclosures may be in relation to matters concerning both CMS Computers as well as CMS Traffic and any other group company as applicable.

DISQUALIFICATIONS

- a) While it will be ensured that genuine whistleblowers are accorded complete protection from any kind of unfair treatment as herein set out, any abuse of this protection will warrant disciplinary action.
- b) Protection under this Policy would not mean protection from disciplinary action arising out of false or frivolous allegations made by a whistleblower knowing it to be false or bogus or with a mala fide intention.
- c) Whistleblowers, who make three or more Protected Disclosures, which have been subsequently found to be mala fide, frivolous, baseless, malicious, or reported otherwise than in good faith, will be disqualified from reporting further under this Policy. In respect of such whistleblowers, the CEO and management would reserve its right to take / recommend appropriate disciplinary action to the audit committee.

PROCEDURE

- a) All Protected Disclosures concerning financial / accounting matters, or any other matter should be addressed to the CEO and the WBAC of the Company for investigation. CMS Computers as well as CMS Traffic will maintain a dedicated mail ID for the same which will also be forwarded to the CEO and the WBAC members.
- b) In respect of Disclosures concerning the CEO or WBAC members, the matter should be addressed as a letter to the Chairperson of the Company.
- c) The contact mail ID for the same covering both CMS Computers India Private Limited as well as CMS Traffic Limited are as under:

EMAIL ID:

Hard Copy letter should be sent attention The CEO as well as the designated Head of WBAC at the CMS Computers / CMS Traffic Bhandup, Mumbai Head Office.

- d) If a Protected Disclosure is received by any executive of the Company other than CEO or the WBAC, the same should be forwarded to the CEO and/or WBAC for further appropriate action. Appropriate care must be taken to keep the identity of the Whistleblower confidential.
- e) Protected Disclosures should be reported in writing so as to ensure a clear understanding of the issues and should preferably be typed in English.
- f) The Protected Disclosure should be forwarded under a covering letter which shall bear the identity of the whistleblower. The CEO or the designated Head of WBAC, as the case maybe shall detach the covering letter and forward only the Protected Disclosure to the Investigators for investigation.
- g) Protected Disclosures should be factual and not speculative or in the nature of a conclusion and should contain as much specific information as possible to allow for proper assessment of the nature and extent of the concern and the urgency of a preliminary investigative procedure.
- h) The whistleblower must disclose his / her identity in the covering letter forwarding such Protected Disclosure. Anonymous disclosures will not be entertained as it would not be possible to interview the whistleblowers unless irrefutable data is available, and an investigation can be initiated. This would however be at a joint meeting of WBAC and the CEO and at their discretion.
- i) Protected disclosures as part of CMS's Prevention of Sexual Harassment (POSH) would continue to be addressed to the POSH committee. If the CEO or WBAC receives a POSH complaint they will forward the same to the POSH committee and leave it to them to investigate and recommend necessary action.

INVESTIGATION

- a) All Protected Disclosures reported under this Policy will be thoroughly investigated by the Head of WBAC who will investigate / oversee the investigations under the authorization of the WBAC. If any member of the WBAC or the CEO has a conflict of interest in any given case, then he / she should recuse himself / herself and the other members of the WBAC should deal with the matter at hand. In case all the members of WBAC and the CEO has a conflict of interest, then the Board of directors shall nominate a director to play the role of Head of WBAC and nominate a minimum of 2 or 3 employees for the purpose of vigil mechanism to whom other directors, employees, clients and vendors may report their concerns.
- b) The Head of WBAC may at his / her discretion, consider involving any Investigators (internal employees, external parties or the police) for the purpose of investigation.
- c) The decision to conduct an investigation by WBAC is by itself not an accusation and is a neutral fact-finding process. The outcome of the investigation may not support the conclusion of the whistleblower that an improper or unethical act was committed.
- d) The identity of a subject will be kept confidential to the extent possible given the legitimate needs of law and the investigation.
- e) Subjects will normally be informed (though not mandated) of the allegations at the outset of a formal investigation and have opportunities for providing their input.
- f) Subjects shall have a duty to co-operate with the WBAC or any of the Investigators during investigation to the extent that such cooperation will not compromise self-incrimination protections available under the applicable laws.
- g) Subjects have a right to consult with a person or persons of their choice, other than the members of the WBAC and / or the whistleblower. Subjects shall be free at any time to engage counsel at their own cost to represent them in the investigation.
- h) Subjects have a responsibility not to interfere with the investigation. Evidence shall not be withheld, destroyed or tampered with, and witnesses shall not be influenced, coached, threatened or intimidated by the subjects.
- i) Unless there are compelling reasons not to do so, subjects will be given the opportunity to respond to material findings contained in an investigation report. No allegation of wrongdoing against a subject shall be considered as maintainable unless there is good evidence in support of the allegation.
- j) Subjects have a right to be informed of the outcome of the investigation. If allegations are not sustained, the subject should be consulted as to whether public disclosure of the investigation results would be in the best interest of the subject and the company.
- k) The investigation shall be completed normally within 30 days of the receipt of the Protected Disclosure.

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PROTECTION

- a) No unfair treatment will be meted out to a whistleblower by virtue of his / her having reported a Protected Disclosure under this policy. The company, as a policy, condemns any kind of discrimination, harassment, victimization, or any other unfair employment practice being adopted against whistleblowers. Complete protection will, therefore, be given to whistleblowers against any unfair practice like retaliation, threat, or intimidation of termination / suspension of service, disciplinary action, transfer, demotion, or the like including any direct or indirect use of authority to obstruct the whistleblower's right to continue to perform his / her duties including making further Protected Disclosure. The Company will take steps to minimize difficulties which the whistleblower may experience because of making the Protected Disclosure. Thus, if the whistleblower is required to give evidence in criminal or disciplinary proceedings, the company will arrange for the whistleblower to receive advice about the procedure.
- b) A whistleblower may report any violation of the above clause to the CEO, who shall investigate into the same and recommend suitable action.
- c) The identity of the whistleblower shall be kept confidential to the extent possible and permitted under law. Whistleblowers are cautioned that their identity may become known for reasons outside the control of the WBAC.
- d) Any other employee assisting in the said investigation shall also be protected to the same extent as the Whistleblower.

INVESTIGATORS

Investigators are required to conduct a process towards fact-finding and analysis. Investigators shall derive their authority and access rights from the WBAC when acting within the course and scope of their investigation.

Technical and other resources may be drawn upon as necessary to augment the investigation. All investigators shall be independent and unbiased both in fact and as perceived. Investigators have a duty of fairness, objectivity, thoroughness, ethical behaviour, and observance of legal and professional standards.

Investigations will be launched only after a preliminary review which establishes that:

1. The alleged act constitutes an improper or unethical activity or conduct. And,
2. Either the allegation is supported by information specific enough to be investigated or matters that do not meet this standard may be worthy of management review, but investigation itself should not be undertaken as an investigation of an improper or unethical activity.

DECISION

If an investigation leads the WBAC to conclude that an improper or unethical act has been committed, the Head of WBAC shall recommend to the CEO / Management / HR of the Company to take such disciplinary or corrective action as the WBAC deems fit. It is clarified that any disciplinary or corrective action initiated against the Subject as a result of the findings of an investigation pursuant to this Policy shall adhere to the applicable personnel or staff conduct and disciplinary procedures.

REPORTING

The Investigators and Head of WBAC shall submit a report to the CEO on a regular basis about all Protected Disclosures referred to him / her since the last report together with the results of investigations, if any.

RETENTION OF DOCUMENTS

All Protected Disclosures in writing or documented along with the results of investigation relating thereto shall be retained by the Company for a minimum period of seven years.

AMENDMENT

The Company reserves the right to amend or modify this policy in whole or in part, at any time without assigning any reason whatsoever. However, no such amendment or modification will be binding on the Employees, management and directors unless the same is notified and published on Digital Lounge.

It is also required for all employees and management to sign adherence and acceptance of the Business Conduct Guidelines, Non-Disclosure Agreement and Whistle blower policy. HR department and IT will facilitate the same annually through CDL or any alternate mechanism.
